Household Permitted Development

Introduction to Permitted Development

Some extensions and alterations to your home can be undertaken without requiring planning permission. This is known as **permitted development.** The regulations containing the full descriptions of works allowed as permitted development are contained in the Town and Country Planning (General Permitted Development) Order 1995 which was last amended on 1st October 2008.

This guide sets out the alterations that the City Council considers that householders can carry out under permitted development rights.

Types of works that may be covered by permitted development rights:

- Extensions, including conservatories. (Class A)
- Rear dormers. (Class B)
- Other roof alterations. (Class C)
- Porches. (Class D)
- Detached buildings within the land around a house. (Class E)
- Decking areas. (Class E)
- Domestic heating storage containers. (Class E)
- Hardstandings and driveways. (Class F)
- Chimneys and other vents. (Class G)
- Satellite dishes and small antennae. (Class H)
- Solar roof panels.

Note: Permitted development rights do not extend to flats (purpose built or converted properties) or maisonettes; except for the installation of a first satellite dish and some small antennae.

Before Starting Work

Please take time to read this advice note which will indicate whether or not you require planning permission.

Certificate of Proposed Lawful Development:

If you consider that the works you propose are permitted development and you require formal confirmation from the City Council, you will need to apply for a **certificate of proposed lawful development**, which, if granted, certifies that any proposed alterations are in accordance with the regulations.

This certificate may be useful if you sell your property as it proves that any alterations were legal. Application forms are available to download at: www.liverpool.gov.uk where you will also find information on application fees.

Building Regulations:

Most building work requires approval under the Building Regulations although there are some exemptions for minor works. The City Council's Building Control team should be contacted to ensure that any alterations you propose comply with the latest Building Regulations standards. Complying with the Building Regulations is a separate requirement from obtaining planning permission and in many cases, works to your property will require both.

There is detailed information about Building Control on the City Council's website and the service can be contacted on: (0151) 233-3021.

The Party Wall Act:

If you live in a semi-detached or terraced house, the walls that you share with your adjoining neighbours are known as party walls.

If you intend to undertake works on, or affecting, the party wall, it may be necessary to notify adjoining owner(s) and reach agreement on the works to be executed before that work is undertaken. The full regulations regarding party walls are contained in The Party Wall Act 1996. Further guidance is available from the Department for Communities and Local Government website: **www.dclg.gov.uk**

Exceptions and Restrictions

There are instances where permitted development rights are more tightly restricted. These include (but are not limited to):

- Listed Buildings.
- Conservation Areas – In Liverpool virtually all Conservation Areas are covered by '**Article 4'** directions (see below).
- New residential developments when permitted development rights have been removed.
- Development relating to an unauthorised or unlawful building.
- Where restrictive conditions are placed on planning consents.

Note: *An Article 4 direction removes permitted development rights in order to protect special features of an area and usually relate to Conservation Areas. If you live in a Conservation Area or you think your property might be affected by an Article 4 direction it is best to contact the City Council before you start work.*

Definitions

There are a few technical definitions used in this document, we have tried to keep them to a minimum.

The 'original' building:

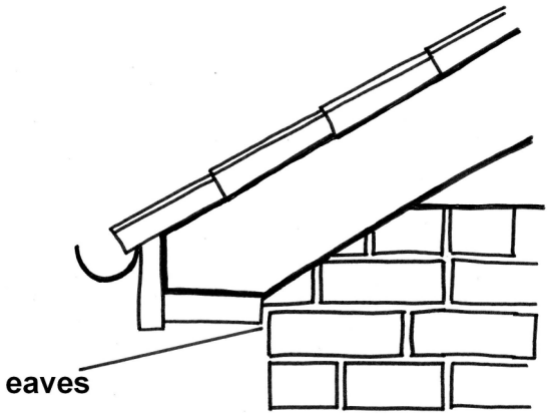
The permitted development regulations consider extensions and alterations to the "original building". If your house was built before 1 July 1948, "original" means as it existed on that date. For a house built after that date, "original" means as it was initially built. A detached garage is not considered to be part of the "original dwelling house" regardless of when it was built.

The 'curtilage' of a building:

The curtilage is the area within the boundaries of a property surrounding the house. It is usually enclosed within a wall or fence of some sort and can extend around all sides of a house and front/rear garden.

The 'eaves' of a building:

The eaves of a property is where the underside of the roof meets the wall.



'Permeable' surface:

A permeable surface, as referred to in this guide, is a surface that allows water to pass through it and soak into the ground.

The 'highway':

For the purposes of the permitted development regulations, a highway is any road open to vehicles (including private roads) or any footpath, which can be used by the public. A highway does not include an alleyway or passage which only serves adjoining residential properties, rather than providing any through route for pedestrians.

The 'elevation' of a property:

The face of the wall in question is referred to as the 'elevation'.

The 'principal' elevation:

The principal elevation is the 'main' wall or face of a house. Most houses' 'principal' elevation is the front face where the front door is, although some houses do have their door in the side elevation. Some properties are considered to have more than one 'principal' elevation (i.e. those on corner plots where two elevations front a highway or in certain instances, where the rear elevation backs onto a highway).

'Terraced' house:

A house in a row of 3 or more properties that are attached to one another and used, or designed for use, as single dwellings.

Extensions and Alterations to a House (Class A)

General rules that apply to all extensions:

The enlargement of a house through any extension (or conservatory) is not permitted development if:

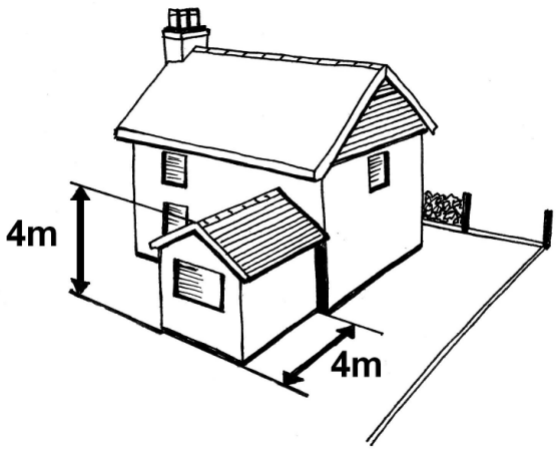
- Over 50% of your curtilage, (i.e. the land not including the original house) would be covered by buildings.
- The height of the extension would be higher than the highest point of the roof of the original house.
- The height of the eaves of the extension would be higher than the eaves of the original house.
- It would include a balcony, veranda or raised platform/decking that is over 30 cm in height.
- The extension would be forward of the principal elevation or side elevation of the original house and fronting a highway.

Single storey rear extensions:

Single storey extensions at the rear of a house can be built under permitted development rights if:

- The extension does not project more than 4 metres beyond the rear wall of the original house on a detached property and 3 metres on any other type of property.
- The extension does not exceed 4 metres in height.
- Where the extension is within 2 metres of the boundary of the house, the eaves are not more than three metres in height.

Note: Where single storey rear extensions have a flat roof, the eaves are considered to be where the gutter hangs, just below the roof. Single storey rear extensions must also comply with the general rules that apply to all extensions.

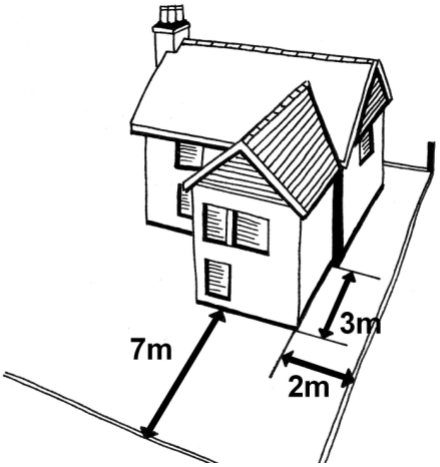


Two storey rear extensions:

Two storey extensions at the rear of a house can only be built under permitted development rights if:

- The extension projects no more than 3 metres from the rear wall of the original house *or* is more than 7 metres from the boundary opposite the rear wall of the house.

Note: Two storey rear extensions must also comply with the general rules that apply to all extensions.

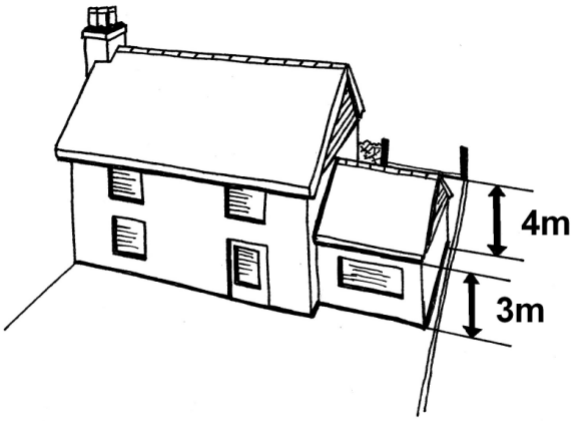


Side extensions:

Side extensions adjoin a wall forming a side elevation of the original house. If this wall faces a highway, (if your house is on a corner plot for example), this type of extension cannot be built under permitted development rights. However, if the side wall of the original property does not face a footpath or road then a side extension can be built under permitted development rights if:

- It does not exceed 4 metres in height.
- It does not have more than one storey.
- It is not wider than half the width of the original house.
- The height of the eaves is no more than 3 metres high if the extension is to be built within 2 metres of the boundary.

Note: Side extensions must also comply with the general rules that apply to all extensions.



Extensions in Conservation Areas:

If your property is in a Conservation Area, cladding the exterior of an extension or the existing exterior of a property with stone, artificial stone, pebbledash, render, timber, plastics or tiles is not permitted development.

In Conservation Areas, side extensions and two storey rear extensions can not be built as permitted development.

Conditions applicable to all extensions:

Extensions that comply with the permitted development criteria set out earlier in this document must comply with the following conditions to qualify as permitted development:

- The materials used for the exterior of the extension must be *similar* in appearance to those used for the exterior of the main house (except for a conservatory).
- Any upper floor window located in the side of the house (including in the roof) must be obscure glazed and those below 1.7 metres from the floor of the room must be non-opening.
- Where an extension has more than one floor, the pitch of the roof of the extension must match the pitch of the roof of the main house, insofar as is practicable.

Roof Extensions and Loft Conversions (Class B)

The enlargement of a roof is permitted development provided that:

- The total volume of the enlargement does not exceed 40 cubic metres on a terraced house or 50 cubic metres in any other case.
- The height of the extension does not exceed the highest point of the existing roof.
- It does not extend beyond the slope of an existing roof forming the *principal elevation*, as explained earlier in this document, and face a highway.

Note: Roof extensions are measured separately from any other extensions to the house. However, you must include any part of the roof that has been previously enlarged and is not 'original' in your calculations of volume.

Note: A front dormer facing onto a road is not permitted development.

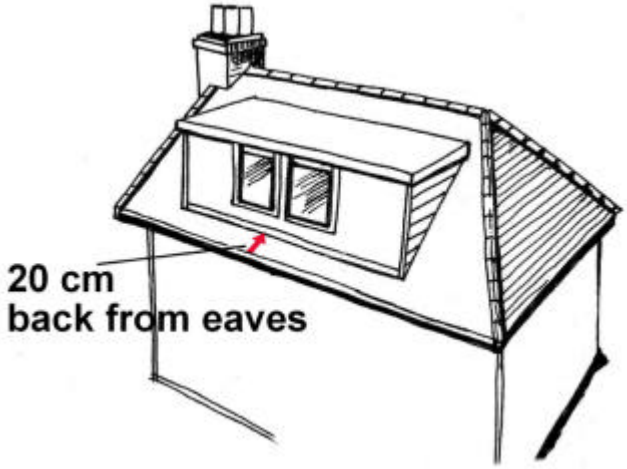
Roof extensions in Conservation Areas:

Roof extensions are not permitted development in Conservation Areas. You will need to apply for planning permission.

Conditions applicable to all roof extensions:

If your proposed roof alteration/extension complies with the above criteria then you must also meet the following conditions for it to be considered permitted development:

- The materials used for the exterior of the extension must be of similar appearance to those used for the construction of the original house.
- The edge of the dormer closest to the eaves of the original roof must be at least 20 cm from the eaves (unless the alteration is a hip-to gable conversion).
- Any window in the wall or roof slope of a side elevation of a house must be obscure glazed, and and those below 1.7 metres from the floor of the room must be non-opening.



Other Roof Alterations (Class C)

Other alterations (the insertion of roof lights for example) are permitted provided that:

- The alteration would not project (when closed) more than 150 mm beyond the plane of the original roof slope.
- The alteration would not be higher than the highest part of the original roof.
- Windows located in the side of the roof slope must be obscure glazed and non opening below 1.7 metres when measured internally from the finished floor level in the room.

Porches (Class D)

Building a porch outside any external door of a dwelling house is permitted development provided that:

- The ground area of the porch does not exceed 3 sq m, measured externally.
- No part of the porch is higher than 3 metres when measured externally, from the ground.
- Any part of the porch is within 2 metres of any boundary of the house which fronts a highway.

Note: The creation of a bay window and/or canopy is not permitted development and would need an application for planning permission.

Detached Buildings on the Land Surrounding a House (Class E)

Many different buildings and structures within the curtilage of a house such as detached garages and sheds, enclosures and swimming pools can be built under permitted development rights, but they must be used for a purpose relating to the use of the main house.

Outbuildings, containers, pools or other structures:
Development is not permitted if:

- Over 50% of the land would be covered by buildings (excluding the original house).
- The building, container, enclosure or pool would be on land that is in front of the property's principal elevation (in most cases this will be the front garden, although some houses have more than one principal elevation).
- The outbuilding would have more than one storey.
- The height of the outbuilding would exceed 4 metres with a dual pitched roof or 3 metres with any other roof type (for example a flat roof or monopitch roof) if it is more than 2 metres away from any boundary.
- The height of the structure, including the eaves of any outbuilding, would exceed 2.5 metres if it is within 2 metres of any boundary.
- The capacity of the container would exceed 3,500 litres.

Decking/balconies:
Development is not permitted if:

- It involves the construction of a veranda, balcony or raised platform (i.e. decking) which is more than 300mm in height.

(Class E) Development in Conservation Areas:
In conservation areas there are no permitted development rights for buildings, pools, enclosures or oil/gas containers on land adjoining the side elevation of a property, regardless of whether it is a principal elevation or not.

(Class E) Development and listed buildings:
There are no permitted development rights for ancillary buildings, pools, enclosures and oil/gas containers within the boundary of a Listed Building.

Hardstandings/Driveways (Class F)

The provision of hard surfacing or paving, or the replacement of an existing hard surface, across an area of more than 5m², between the principal elevation of a house and a highway will only be permitted development if:

- Water run-off is contained within your boundary.
- Water run-off is not directed towards public paths, roads or directly into any drains.

This can be achieved in two ways:

- The materials that you use to create your hard surfacing could be permeable to water. Good examples of permeable hard surfaces include paving slabs with sand in the gaps to allow water to drain into the ground, porous asphalt and gravelled surface.

- Water from an impermeable surface can be directed to a garden border or soak away that is located within your boundary.

Note: The easiest way to check whether your hard surfacing complies with the above is to throw a bucket of water on it. If the water soaks into the ground within your boundary then it would be compliant.

For further advice look at "Guidance on the Permeable Surfacing of Front Gardens" at the website: **www.communities.gov.uk**

Chimneys and Other Vents (Class G)

The installation or replacement of a chimney, flue or soil and vent pipes on a house is permitted development provided that:

- The height of the chimney does not exceed the highest part of the roof by more than 1 metre.

Chimneys in Conservation Areas:

In Conservation Areas, chimneys and other vents cannot be installed as permitted development on any roof slope or wall that faces a highway or a roof slope that forms either the principal elevation or side elevation of the house.

Satellite Dishes and Antennas (Class H)

Installing a satellite dish or other microwave antenna on a house or within the boundary of a house is permitted development provided that:

- It would result in no more than two antennas or satellite dishes.
- For a single antenna or satellite dish, it would not exceed 100 cm in length/diameter.
- For two satellite dishes or antenna, only one would exceed 60 cm in length/diameter (up to 100cm).
- If installed on a chimney, an antenna or satellite dish would not exceed 60 cm in length/diameter.
- If installed on a roof with a chimney, an antenna or satellite dish would not exceed 60 cm measured from the ridge of the roof or protrude above the chimney.
- If installed on a roof without a chimney, an antenna or satellite dish would not exceed the highest part of the roof.
- The satellite dish would exceed 35 litre cubic capacity.

Satellite dishes in Conservation Areas:

In Conservation Areas, the installation of satellite dishes and antennas is not permitted development on:

- Chimneys, walls or roof slopes that face onto and are visible from a public path or road.
- A building that exceeds 15 metres in height.

Conditions applicable to all satellite dishes or antenna:

If your proposed satellite dish or antenna complies with the above criteria then you must also meet the following conditions for it to be considered permitted development:

- The antenna must be sited where it would cause the least harm to the appearance of the building.
- Any antenna that is no longer in use must be removed.

Domestic Micro-generation Equipment

Part 40 of the General Permitted Development Order came into force on 6th April 2008 and permits the installation of solar PV or solar thermal equipment on domestic properties. This equipment, located on a house or on a building within the boundary of a house will be permitted development provided that:

- The equipment does not protrude more than 20 cm from the roof plane.
- The equipment would not be higher than the highest part of the roof (excluding the chimney).
- If it is a Conservation Area, the equipment is not on a wall or roof slope forming the side or principal elevation or visible from the road.
- It is not on a listed building or a building within the curtilage of a listed building.

Note: There are a number of other types of domestic micro-generation equipment including water source heat pumps and biomass heating systems. You are advised to speak to the City Council to clarify whether these would be permitted development on your property.

Conditions applicable to all equipment:

If your proposed micro-generation equipment complies with the above criteria then you must also meet the following conditions for it to be considered permitted development:

- The equipment must be sited where the least harm is caused to the appearance of property and the area.
- As soon as the equipment is not in use it must be removed.

Further Advice

If, after reading this advice note you are still unsure about your permitted development rights, please contact the City Council on (0151 233 3021) or planningandbuildingcontrol@liverpool.gov.uk to discuss your circumstances further.

If you need to apply for planning permission, please go the website: www.liverpool.gov.uk for further information and guidance on making a planning application, or arranging pre-application discussions.